

Section 425.16(c)(1) of the California Code of Civil Procedure.

The Court orders that Defendant shall pay \$8,000 in attorneys' fees to Plaintiff's counsel of record, Andrew Wolff, Esq. and the Law Office of Andrew Wolff, P.C., within 30 days of service of notice of entry of this Order.

6. 9:00 AM CASE NUMBER: C25-00379
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. CONCORD TECHNOLOGY CENTER PROPERTY OWNER, LLC
***HEARING ON MOTION IN RE: APPROVE RECEIVER'S FINAL REPORT AND DISCHARGE**
FILED BY: KIEFFER, DAVID
TENTATIVE RULING:

The Unopposed Motion of David Keiffer for an Order Approving the Final Report of Receiver and Related Relief and Discharge of Receiver is **granted**. **The Court will execute the proposed order lodged May 1, 2026.**

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
HEARING ON DEMURRER TO: COMPLAINT - SET BY COURT - ZOOM APPEARANCE IS OKAY
FILED BY:
TENTATIVE RULING:

Defendant Contra Costa County's Demurrer to Plaintiff Kyani-Devareu Harris's Complaint is **off calendar as moot**. Under Code of Civil Procedure section 472, a party may amend its complaint after a demurrer is filed but before the demurrer is heard if the amended complaint is filed and served no later than the date for filing an opposition to the demurrer. Plaintiff filed a First Amended Complaint on September 8, 2026, three days after the opposition deadline for a hearing on September 18, 2026. (Code Civ. Proc. § 1005(b).) Although the amended complaint was technically filed late, the Court would grant leave to amend in any event, and there is no purpose in examining the sufficiency of a superseded complaint.

8. 9:00 AM CASE NUMBER: C25-01631
CASE NAME: RACHEL HONG VS. JULIAN ORTON, III
MOTION TO BE RELIEVED AS COUNSEL FOR PB DEVELOPMENT
FILED BY: PB DEVELOPMENT GROUP, INC.
TENTATIVE RULING:

The unopposed Motion to be Relieved as Counsel for PB Development is granted. The Court will execute the proposed order lodged with the Court on August 13, 2026. The order will become effective upon service of the order upon the client.

9. 9:00 AM CASE NUMBER: C25-01631
CASE NAME: RACHEL HONG VS. JULIAN ORTON, III
MOTION TO BE RELIEVED AS COUNSEL AS TO RACHEL HONG
FILED BY: HONG, RACHEL
TENTATIVE RULING:

The unopposed Motion to be Relieved as Counsel for Rachel Hong is granted. The Court will execute the proposed order lodged with the Court on August 13, 2026. The order will become effective upon service of the order upon the client.

10. 9:00 AM CASE NUMBER: C25-03313
CASE NAME: MARCELO GIUDICI VS. HERBERT SANDOVAL
***HEARING ON MOTION IN RE: TO SET ASIDE AND VACATE THE CLERK ENTERED DEFAULT OF**
HERBERT OMAR SANDOVAL AND SUSANA REYES (HEARING ADVANCED TO 9/18/2026 / SEE M/O OF
7/13/2026
FILED BY: SANDOVAL, HERBERT OMAR
TENTATIVE RULING:

Before the Court is a motion to set aside and vacate default ("Motion") filed by defendants Herbert Omar Sandoval and Susana Reyes ("Defendants"). Plaintiffs Giudici Academy NorCal, LLC and Marcelo Giudici ("Plaintiffs") oppose the Motion.

For the reasons set forth below, the Court's ruling is to GRANT Defendants' Motion.

Background – Facts Alleged in Complaint

Plaintiffs filed the complaint in this matter on November 12, 2025 ("Complaint"). Around November 13, 2024, Mr. Giudici and Mr. Sandoval entered into an oral contract to form a 50-50 partnership called Giudici Academy NorCal, LLC. (Complaint, ¶ 8 [Giudici Academy NorCal, LLC was to provide Brazilian Jiu-Jitsu classes].) Mr. Sandoval did not make an initial investment but promised that his share of capital would be forthcoming in the near future. (*Ibid.*) Despite being asked for his share of the investment repeatedly, Mr. Sandoval kept stating he would do so in the near future. (*Id.* at ¶ 10.) Defendants' daughter trained at the Academy without paying and obtained uniforms, rash guards, and other apparel free of charge as "the business partners' daughter." (*Ibid.*) Defendant Reyes controlled business operations, including email accounts, social media, and financials such as business account receivables and business account payables. (*Id.* at ¶ 11.)

For several months in a row, from July to September 2025, Mr. Sandoval withdrew an unauthorized \$1,500, as salary, despite Mr. Giudici saying this was not allowed, not agreed to, and improper as there was no employee structure for their business as they were partners and wages need to be taxed in a manner the business was not set up for. (Complaint, ¶¶ 12-14.) In October 2025, Mr. Giudici asked Defendants for the business debit card to purchase an iPad for business use and they refused, stating that they would discuss his use of the debit card in the future. (*Id.* at ¶ 15.) Defendants subsequently made multiple unauthorized withdrawals while on vacation in Florida and Mr. Giudici exercised his fiduciary duty to the business and excluded Defendants from any further